TECHNICAL ANNEX A TO CODE 16 — SOCIAL START-UP PROTOCOL

Version: V1.4

Technical annex adopted pursuant to Article 19 of Code 3 and referred to in Articles 1, paragraph 2, letter h), 4 and 7, paragraph 5, of Code 16.

Art. 1 — Nature, function and effects

1. This Protocol defines a methodology for assessing the social steps connected with the start-up of the pilot Circles, the Basins and the minimum Federation. The methodology is used to verify the institutional social thresholds provided for by Article 4 of Code 16.
2. The Protocol does not constitute an autonomous source of individual obligations, sanctions, exclusions or limitations. Failure to apply it:
   a) does not, in itself, constitute a violation within the meaning of Code 4;
   b) does not entail individual suspensions, sanctions or prejudice;
   c) does not limit access to Code 4, to the Guarantee, to vital goods or to Basket 1-2.
3. Documented failure by the Circle to apply it may result exclusively in the relevant institutional social threshold not being passed and, consequently, prevent the phase change from being proposed or resolved upon. That effect concerns the Circle as an institutional entity and produces no individual consequences.
4. For the purposes of this Protocol, the reference Council for care is:
   a) the Health Council, until the activation of the Care Council;
   b) the Care Council, from the activation provided for by Code 16, Article 3, paragraph 3.
   Every reference to the reference Council for care is to be understood as made in accordance with this paragraph.
5. The documentation is produced, as far as possible, in aggregated and non-profiling form, in accordance with Code 7, Article 2.2. Data are collected only to the extent necessary for the verification of the relevant threshold. The minimum aggregation threshold is defined by the Network Council when active, in order to reduce the risk of direct or indirect identification, in compliance with the separation of domains provided for by Code 6, Article 11.
6. The Protocol does not replace the competences, procedures or guarantees provided for by the other Codes and does not authorise the Transition Council or other bodies to adopt individual measures not provided for by the applicable rules.

Art. 2 — Level 1: trust and start-up of the Circle

Institutional phase of reference: Phase 0 of Code 16, indicatively from zero to six months.
Minimum operational duration: from zero to ninety days.

1. Level 1 aims to verify the initial social sustainability of the pilot Circle and to foster minimum conditions of trust and collaboration.
2. Before the constitutive resolution of the pilot Circle, three non-deliberative meetings are organised. Every participant may describe their own motivations, actual availability, personal limits and any care burdens relevant to the organisation. The information collected is minuted in aggregated form, without identifying persons by name. For a Circle born from a network pursuant to Article 17 of Code 16, the meetings take place within ninety days of the conversion.
3. An aggregate map of the capacity for care and organisation is prepared, which may take into account:

a) the total time available for the activities of the Circle;

b) the presence of care burdens that affect the organisation;

c) the functional needs relevant to preparing accessible activities;

d) the organisational indicators of overload.

The collection does not constitute a diagnosis, an individual health assessment or a classification of persons. The data are aggregated and non-profiling, retained for no more than twelve months unless a different period is imposed by a higher-ranking rule, and accessible exclusively to the competent Councils for the purposes provided for by the Protocol.

4. The Circle adopts an organisational pact that excludes the use of minors, frail persons or proximity companion animals to make up for organisational shortcomings, cover shifts incompatible with their protection or replace necessary personnel.

5. A symbolic and optional moment of joining the pilot Circle may be provided for. That moment produces no legal effects and does not constitute a requirement for joining, for access to rights or for the enjoyment of essential services.

6. The Transition Council draws up a technical attestation on the application of Level 1 and on the social sustainability resulting from the aggregated data. The attestation contributes to the verification of the F0 → F1 threshold provided for by Code 16, Article 4, paragraph 1, letter d).

Art. 3 — Level 2: living together and prevention of overload

Institutional phase of reference: Phase 1 of Code 16, indicatively from six to eighteen months.
Minimum operational duration: from ninety to one hundred and eighty days.

1. Level 2 aims to improve operational living together and to prevent the overload of the organisation and of persons.

2. Social L1 training with a total duration of four hours is offered free of charge, covering at least:

a) safe interruption of risky activities;

b) recognition and reporting of fatigue and overload;

c) basic facilitation techniques;

d) the principle of non-retaliation.

The training is delivered by persons with L2 or L3 competences verified in accordance with the applicable rules.

3. Every General Assembly is conducted by two facilitators, with mandatory rotation. In the same Assembly it is not permitted to combine the function of facilitator with that of proposer. The minutes indicate the facilitators without recording further unnecessary data.

4. Exceeding one of the following indicators activates organisational support with the reference Council for care:

a) an average of more than fifteen hours per week of Circle activities, calculated on a quarterly basis in accordance with an aggregated method defined by the competent Council;

b) exceeding the peak-hour limits provided for by Code 1, Article 6, paragraph 5.

The support consists in verifying the organisation and, if necessary, in proposing a redistribution of the loads. It does not constitute a sanction, a negative individual assessment or a limitation of rights.

5. The measurement provided for by paragraph 4 is carried out with aggregated criteria and may not be used to classify persons or to attribute individual assessments to them. The personal reporting channels provided for by the applicable Codes remain available.

6. A social repair procedure with a trusted person external to the Circle, chosen by mutual agreement, may be promoted, exclusively on a voluntary basis. The procedure:

a) is voluntary for all the persons involved;

b) is not a condition for access to Code 4;

c) neither delays nor replaces a report pursuant to Article 5 of Code 4;

d) neither delays nor replaces the appeal provided for by Article 17 of Code 3.

7. An exclusively aggregated and non-profiling register of the organisational signals of overload may be kept. The register is retained for twelve months and may be consulted by the reference Council for care and by the Transition Council exclusively for their respective functions, in compliance with the separation of domains provided for by Code 6, Article 11.

8. The aggregated documentation on the application of Level 2 contributes to the verification of the F1 → F2 threshold provided for by Code 16, Article 4, paragraph 2, letter e).

Art. 4 — Level 3: social autonomy and perceived safety

Institutional phase of reference: Phase 2 of Code 16 and, subsequently, maintenance in Phase 3.

1. Level 3 aims to prevent relational and decision-making concentration, organisational endogamy and the conditions that may compromise perceived safety.

2. In each Council no more than two persons belonging to the same stable cohabitation nucleus may serve at the same time. The information necessary to verify that limit is processed in confidential form and limited to the purpose of composing the Councils.

3. The rotation of the Transition Councils follows Article 4.4 of the Constitution and Article 5, paragraph 3, of Code 16. The limit of ninety consecutive days, the overall limit of one hundred and eighty days in three hundred and sixty-five days and the interval of at least twelve months of exclusive activity in ordinary CBO between two terms of office apply, within the limits provided for by the rules referred to.

4. Every pilot Circle organises at least one inter-Basin exchange, which comprises the voluntary participation of at least one person for one continuous week in another Basin, for contribution activities. The directly necessary expenses are covered by the Common Fund in accordance with the applicable rules. The tracking of the exchange is aggregated and non-profiling.

5. Every six months an anonymous questionnaire on perceived safety is carried out, by technical means suitable for preventing the identification of persons. The minimum question is: “Do you feel safe here?”. The answers are not published when the number of participants does not allow adequate aggregation. The questionnaire is carried out and counted in each pilot Circle; the threshold of paragraph 6 is verified for each of them, and the corrective plan concerns the Circle in which it is exceeded.

6. If more than twenty per cent of the valid answers are negative:

   a) the proposal to pass to the next phase remains suspended until a corrective measure has been prepared and verified;

   b) the reference Council for care prepares, within thirty days, a plan addressed to the organisation and structure of the Circle;

   c) the plan is followed by a new verification within sixty days.

   Exceeding the threshold does not, in itself, constitute grounds for a sanction, exclusion or individual measure.

7. A point of no return within the meaning of Code 16, Article 1, paragraph 2, letter g), may not be proposed on the exclusive basis of the assessment of the members internal to the Basin concerned. The mandatory and non-binding opinion of at least one external L3 person, drawn by lot in accordance with the procedure of Code 4, is required.

8. The aggregated documentation on the application of Level 3 contributes to the verification of the F2 → F3 threshold provided for by Code 16, Article 4, paragraph 3, letter f), and to the verification of the maintenance of the F3 → F4 threshold provided for by paragraph 4, letter d), of the same Article.

Art. 5 — Documentation, verification and updating

1. The documentation of each level is drawn up in aggregated and non-profiling form in accordance with Code 7, Article 2.2. It is retained for thirty-six months, unless a different period is provided for by a higher-ranking rule, and made accessible in accordance with Article 15 of Code 3, in compliance with data protection and the separation of domains.

2. The application of the Protocol is verified by the Transition Council, after the mandatory opinion of the reference Council for care.

3. A negative opinion of the reference Council for care may suspend exclusively the institutional proposal for a phase change until any corrective plan has been prepared and verified. It may not entail individual suspensions, exclusions, sanctions or limitations and does not affect access to Code 4, to the Guarantee, to vital goods or to Basket 1-2.

4. The outcome of the verification is transmitted to the competent bodies in accordance with Article 4 of Code 16. This Protocol does not confer on the Transition Council the power to resolve autonomously upon the phase change.

5. The Protocol may be updated on a proposal from the Transition Council or from the reference Council for care, in accordance with Article 19 of Code 3, after publication for at least seventy-two hours. The Transition Council may not modify it autonomously or modify the thresholds established by Code 16.

6. No provision of this Protocol:

    a) introduces permanent competences;

    b) modifies the thresholds of Code 16;

    c) introduces autonomous individual obligations;

    d) limits rights or guarantees provided for by the applicable Codes;

    e) replaces the binding opinions provided for by the reference legislation.

7. **Normative links:** Code 16, Articles 1, 4, 5, 7 and 8; Code 3, Articles 3, 4, 13–17 and 19; Code 4; Code 6, Article 11; Code 7, Article 2.2; Code 12; Constitution, Article 4.